

Message History (3)

On 8/31/2026 4:09:01 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W013278-081926

Body:

RE: PUBLIC RECORDS REQUEST of August 19, 2026, **Reference # W013278-081926**

Dear Brian C,

The City received the following records request from you on August 19, 2026.

This request seeks one document and the records surrounding it: the data protection agreement that Flock Safety directs its customers to execute. It covers January 1, 2020 through the date of production, and concerns the City's agreements with Flock Group Inc. d/b/a Flock Safety — the 2020 service agreement, the 2023 Master Services Agreement, and Amendments No. 1 and No. 2.

Flock's Privacy Policy, at <https://www.flocksafety.com/legal/privacy-policy> (version marked "Last Updated: August 1, 2025"), states: "Data protection and privacy laws in your jurisdiction may impose certain responsibilities on you and your use of our products. You are responsible for ensuring that you comply with all applicable laws when you use the Flock Services or products, including, where so required, to execute a mutually agreed upon data protection agreement."

As you are aware, the Department is both an ALPR operator under California Civil Code § 1798.90.51 and an ALPR end-user under § 1798.90.53, and both sections require reasonable security procedures and practices — operational, administrative, technical, and physical — to protect ALPR information from unauthorized access, destruction, use, modification, or disclosure. Flock directs its customers to execute a data protection agreement where their jurisdiction imposes such responsibilities. This request seeks the discrete documents held in the City's contract, purchasing, and vendor files that would show whether the City did so as its vendor directs, and how that obligation is allocated between the two.

- 1. The executed "mutually agreed upon data protection agreement" described in the passage quoted above — the instrument Flock's Privacy Policy directs its customers to execute — whatever title it actually carries (data protection agreement, data processing agreement, data processing addendum, DPA, data security agreement, or similar), including all exhibits, schedules, and amendments.*
- 2. Any template, form, model, or standard version of that instrument held in City or Department files, in any state — executed, unexecuted, draft, or redlined.*
- 3. The index, inventory, document list, or file listing for the Flock vendor file and contract file, as maintained in the City's contract management, purchasing, or records system — the listing itself, sufficient to identify every document filed under the Flock agreements. Not the underlying documents.*
- 4. Contract review checklists, contract routing or approval forms, contract summary sheets, and signature routing slips prepared for the 2020 agreement, the 2023 Master Services Agreement, and each amendment.*
- 5. The City's standard contract provision, exhibit, or template addressing data security, data privacy, or vendor*

handling of personal information, together with any record documenting its inclusion in, waiver from, or omission from the Flock agreements.

6. Any Management Control Agreement, CJIS Security Addendum, or equivalent instrument executed with Flock or with any Flock subcontractor, and records sufficient to identify whether any hot list used by the Department within the Flock platform derives from CLETS, NCIC, or the Stolen Vehicle System.

7. Any copy of Flock's Privacy Policy, Terms of Service, or other published vendor terms maintained in the City's contract or vendor files, and any record identifying which version was reviewed at each execution.

8. Records sufficient to identify each subcontractor or third party Flock uses to store or process San Mateo ALPR data, and any City approval, review, or acknowledgment of them.

9. Any notification from Flock to the City of a data breach, security incident, or unauthorized access affecting San Mateo ALPR data.

Every item above seeks a discrete document maintained in a contract, purchasing, or vendor file. No item requests a search of any email account, and no item is satisfied by production from the email review pending under W012462-040226 or under any other request. Item 3 is a single listing and can be produced independently of every other item. This request is addressed to the City. Responsive records are likely held by the City Clerk, by Finance or Purchasing, and by the City Attorney's Office. To the extent items 6, 8, or 9 are held by the Police Department instead, I ask that those individual items be routed accordingly rather than treated as non-responsive.

Records held by Flock as the City's contractor are City records under Gov. Code § 7920.530 and City of San Jose v. Superior Court (2017) 2 Cal.5th 608, as the Department's production of Flock platform event-log data under W012570-041926 confirms.

A determination under Gov. Code § 7922.535 is requested within 10 days. If any item is unclear, Gov. Code § 7922.600 provides for the City's assistance in identifying responsive records, and I will narrow on request.

Brian

We have made a good faith and diligent effort to complete your request, in which responsive records have been collected. These records and the Department's full response letter are available on the San Mateo Records Request Portal. Select the link below to view.

The City has completed its response to your request and now considers this record request **W013278-081926** closed.

If you have any questions, please contact me using the below contact information.

Sincerely,

Kelly O'Keefe
Police Technical Services Administrator

Police
(650) 522-7709

On 8/19/2026 9:03:27 PM, San Mateo Public Records Center wrote:



Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 8/19/2026 and given the reference number **W013278-081926** for tracking purposes.

Record(s) Requested: This request seeks one document and the records surrounding it: the data protection agreement that Flock Safety directs its customers to execute. It covers January 1, 2020 through the date of production, and concerns the City's agreements with Flock Group Inc. d/b/a Flock Safety — the 2020 service agreement, the 2023 Master Services Agreement, and Amendments No. 1 and No. 2.

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5. The City's standard contract provision, exhibit, or template addressing data security, data privacy, or vendor handling of personal information, together with any record documenting its inclusion in, waiver from, or omission from the Flock agreements.

6. Any Management Control Agreement, CJIS Security Addendum, or equivalent instrument executed with Flock or with any Flock subcontractor, and records sufficient to identify whether any hot list used by the Department within the Flock platform derives from CLETS, NCIC, or the Stolen Vehicle System.

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Brian

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the [San Mateo Records Center](#).

On 8/19/2026 9:03:26 PM, Brian C wrote:

Request Created on Public Portal